

2. Plaintiffs are awarded and shall recover from Defendant attorneys' fees in the sum of **\$33,969.75.**
3. Plaintiffs are awarded and shall recover from Defendant costs of suit in the sum of **\$1,119.37.**
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.

7. 9:00 AM CASE NUMBER: C24-02121
CASE NAME: SILVINO RAMIREZ VS. ANSELMO OCAMPO
***HEARING ON MINOR'S COMPROMISE RE: MYLENE RAMIREZ**
FILED BY: RAMIREZ, SILVINO
TENTATIVE RULING:

Petitioner Silvino Ramirez, the duly appointed guardian ad litem herein, filed two separate petitions for approval of compromise of minor's claims on December 8, 2025 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein relating to the minor claimants Mylene Ramirez and Melanie Ramirez. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on April 27, 2026.

Analysis

The Minor's Compromise is unopposed. The Court has considered the verified Minor's Compromise and supporting declarations. The Court finds the proposed terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is APPROVED.
2. The Court shall enter the proposed orders lodged with the moving papers.

8. 9:00 AM CASE NUMBER: C24-02121
CASE NAME: SILVINO RAMIREZ VS. ANSELMO OCAMPO
***HEARING ON MINOR'S COMPROMISE RE: MELANIE RAMIREZ**
FILED BY: RAMIREZ, SILVINO
TENTATIVE RULING:

See LINE 7 above.

9. 9:00 AM CASE NUMBER: C24-03520
CASE NAME: MARNA PAINTSIL ANNING VS. WILDWOOD AT VILLAGE PARK OWNERS' ASSOCIATION
***HEARING ON MOTION IN RE: CONTINUED FROM MARCH 30, 2026**
FILED BY:
TENTATIVE RULING:

Defendant Wildwood at Village Park Owners' Association ("Defendant") filed a Motion for Reasonable Attorneys' Fees and Costs on November 14, 2025 (the "Motion for Fees and Costs"). The Motion for Fees and Costs was set for hearing on March 30, 2025. The motion is opposed.

At the hearing on the Motion for Fees and Costs, plaintiff Marna Paintsil Anning (“Plaintiff”) requested a court-provided court reporter for the hearing. The matter was called on the record with a privately retained court reporter supplied by the moving party. In its discretion, the Court granted a continuance to provide plaintiff the opportunity to ensure that plaintiff had a valid current fee waiver on file and to request, through the appropriate court process, a court-provided court reporter for the next hearing date. See Order entered April 1, 2025. The Motion for Fees and Costs was continued to April 27, 2026. All parties were present and had actual notice of the continued hearing date.

Background

Following the sustaining of Defendant’s demurrer to Plaintiff Marna Paintsil Anning’s (“Plaintiff”) Complaint without leave to amend, the Court entered judgment in favor of Defendant and found Defendant to be the prevailing party. See Judgment for Dismissal after Demurrer Sustained Without Leave to Amend entered September 19, 2025 (the “Judgment”).

The Judgment provided, among other things, that “Defendant may recover its reasonable attorneys’ fees and costs, in an amount to be determined upon noticed motion and cost bill.” *Id.*

The Motion for Fees and Costs is supported by the Declaration of Melina Rezaei filed November 14, 2025 (the “Supporting Declaration”).

The Supporting Declaration includes a summary of the legal services rendered and expenses incurred in the litigation of the matter. See Supporting Declaration, ¶¶7-9 and **Exhibit A** thereto. The fees sought total **\$43,703.00**. See *id.* at ¶9 and **Exhibit A** thereto. The costs sought total **\$1,070.58**. See *id.* at ¶10 and **Exhibit A** thereto.

Analysis

Plaintiff filed an Opposition to the Motion for Fees and Costs. Essentially, the Opposition argues that the issue of an award of attorneys’ fees and costs is embraced within the scope of a pending appeal and the trial court cannot rule on this motion pending the resolution of the appeal. See Opposition, p. 4 *et seq.*

As addressed in Defendant’s reply, an appeal of a judgment does not prevent the trial court from ruling on a motion for an award of attorneys’ fees.* *Robertson v. Rodriguez* (1995) 36 Cal.App.4th 347, 360 (trial court properly concluded it had jurisdiction to proceed because the trial court retains jurisdiction to entertain a motion for attorney fees despite an appeal).

The Opposition does not otherwise take issue with any of the specific billings or costs claimed. Nonetheless, the Court has reviewed the claimed attorneys’ fees and costs.

Having reviewed all of the claimed attorneys’ fees and the description of the work to which the claimed fees related (see Supporting Declaration, **Exhibit A**), the Court finds all of the claimed fees reasonable except as to the following: (a) certain excess or vague time reflected in billings for internal office management and communication (see e.g. 02/09/2025 time entry for time including “[c]onfer with management regarding case status”) and (b) excess time reflecting billings for file review; and (c) excess time reflecting billings for reporting to insurer (see e.g. 05/27/2025 time entry). The trial court has broad authority to determine the amount of a reasonable fee. *Holquin v. Dish Network LLC* (2014) 229 Cal.App.4th 1310, 1329.

The Court finds, in the exercise of its discretion, that a total reduction of attorneys’ fees down to **\$42,000.00** is just and reasonable. The Court finds that such amount for legal services rendered was

reasonable given the nature and scope of the issues in the case and the litigation that occurred up to the entry of the Judgment. See Supporting Declaration, **Exhibit A**.

The Court further finds that the **\$1,070.58** in claimed costs were reasonable and necessary to the conduct of the litigation. See Supporting Declaration, **Exhibit A**, p. 9.

*In addition, the Court notes that, since the last hearing, the Court of Appeal issued an order dated April 16, 2026 denying Plaintiff's request for immediate stay and petition for writ of prohibition.

Disposition

The Court finds and orders as follows:

1. The Motion for Fees and Costs is GRANTED.
2. Defendant is awarded and shall recover from Plaintiff attorneys' fees in the sum of **\$42,000.00**.
3. Defendant is awarded and shall recover from Plaintiff costs of suit in the sum of **\$1,070.58**.
4. The Court will issue the order after hearing.

10. 9:00 AM CASE NUMBER: C25-01037
CASE NAME: ROBERT LOPEZ VS. MARILYNE CASTILLO
HEARING ON DEMURRER TO: ANSWER OF ROBERT LOPEZ
FILED BY: CASTILLO, MARILYNE
TENTATIVE RULING:

Before the Court is Defendant/Cross-Complainant Marilyne Castillo's Demurrer to Cross-Defendant's Affirmative Defenses in Defendant's Answer ("Demurrer").

The hearing on the Demurrer is continued until **June 22, 2026**, as outlined below.

Factual and Procedural Background

Plaintiff filed the Complaint in this matter on April 11, 2025. According to the Complaint, Plaintiff and Defendant both own real properties located at 2345 Paloma Court in Pinole, California. Plaintiff owns unit #6 which is directly above unit #2, which is owned by Defendant. Defendant rents out her unit to tenants. The Complaint generally relates to alleged nuisance and trespass claims by Plaintiff relating to Defendant's tenant's actions and Defendant's failure to manage her tenants and enforce the HOA rules.

Defendant filed a cross-complaint against Plaintiff on June 20, 2025. Plaintiff/Cross-Defendant demurred to the cross-complaint. The First Amended Cross-Complaint ("FACC") was filed on October 10, 2025. Plaintiff/Cross-Defendant filed his Answer to the FACC on November 12, 2025. Nine days later, on November 21, 2025, counsel for Defendant/Cross-Complainant filed a Declaration Regarding Inability to Comply with Meet and Confer Requirement ("Inability Declaration") related to his proposed Demurrer to the Answer. He then filed the Demurrer on December 9, 2025.

Legal Standard

The standard for a demurrer to an answer is whether the answer states facts sufficient to constitute a defense. (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732.) A defendant must set